

TENTATIVE RULINGS

FOR: August 14, 2026

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PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Bruce E. Sandoval

26-43006

BIENNIAL REVIEW

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review – Biennial hearing in two years, on August 15, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall

prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In the Matter of the Bruce Sandoval Trust

26-60272

ACCOUNTING HEARING

TENTATIVE RULING: This accounting hearing is VACATED as redundant, in light of Trustees' July 31, 2026, Petition to Approve Seventh Account set for hearing on September 03, 2026.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

M5 Automotive LLC v. Kastner Automotive Inc. et al

22CV000567

PLAINTIFF AND CROSS-DEFENDANT M5 AUTOMOTIVE LLC'S MOTION FOR: (1) AN ORDER RULING THAT ENFORCEMENT OF THE FEE AND COST AWARD IS NOT AUTOMATICALLY STAYED BY APPEAL AND THAT AN UNDERTAKING IS REQUIRED; OR, IN THE ALTERNATIVE, (2) AN ORDER REQUIRING A DISCRETIONARY UNDERTAKING

TENTATIVE RULING: The motion is GRANTED. The Court concludes that the Fee and Cost Appeal (appealing the post-judgment orders awarding \$1,650,607.75 in attorneys' fees and \$49,971.61 in costs to M5 ("Fee and Cost Award")) is not subject to the automatic stay without an undertaking under the final provision of Code of Civil Procedure section 917.1, subdivision (d). Rather, because both the Merits Award (defined below) and Fee and Costs Award have been appealed, an undertaking is required to stay the enforcement thereof pursuant to section 917.1, subdivision (a)(1), which undertaking is calculated based on the Merits Award and Fee and Cost Award pursuant to the first provision of Code of Civil Procedure section 917.1, subdivision (d), less any amount that has been satisfied (here, the Merits Award). Thus, the perfecting of the appeals does not serve to stay enforcement of the Fee and Cost Award unless an undertaking of one and one-half times the Fee and Cost Award is posted. The alternative request to require a discretionary bond under section 917.9 is therefore MOOT.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff and Cross-Defendant M5 Automotive LLC (“M5”) moves, pursuant to Code of Civil Procedure section 917.1 and 917.9,¹ for an order ruling that (1) this action has not been automatically stayed by the Notice of Appeal dated May 19, 2026 (the “Fee and Cost Appeal”) filed by Defendants and Cross-Complainants Kastner Automotive, Inc. and William Kastner, Jr. (collectively, “Seller Parties”) from the post-judgment orders awarding \$1,650,607.75 in attorneys’ fees and \$49,971.61 in costs to M5 (“Fee and Cost Award”); and (2) the Seller Parties must post an undertaking of 1.5 times the Fee and Cost Award to obtain a stay pending appeal. Alternatively, if the Court finds the Fee and Cost Appeal has triggered an automatic stay, Seller Parties are required to post a discretionary undertaking of 1.5 times the Fee and Cost Award to obtain a stay pending appeal.

M5 moves “on the grounds that the Fee and Cost Award is integrated into the Second Amended Judgment and, thus, constitutes a monetary award [under section 917.1, subdivision (a)(1)] not subject to the imposition of an automatic stay [under section 917.1, subdivision (d)]. Accordingly, if the Seller Parties want to stay enforcement of the Fee and Cost Award, then they must post an undertaking required by [] section 917.1, subdivision (b) in the amount of 1.5 times the Fee and Cost Award. There is an actual controversy between the parties on this point—the Seller Parties have contended in written correspondence with M5 that it is their legal position that by filing a notice of appeal of the Fee and Cost Award, they have automatically stayed enforcement of that order. Further, the Seller Parties have contended that, should M5 seek to execute on the Fee and Cost Award, they will seek relief from this Court.” (Notice of Motion, 3:14-23.)

B. RELEVANT FACTUAL BACKGROUND

On August 15, 2025, a jury returned a verdict in favor of M5 and awarded \$1,185,683.24 in monetary damages (“Merits Award”). The Merits Award was ultimately memorialized through a Second Amended Judgment, dated February 19, 2026. The Second Amended Judgment expressly states that M5 “shall be entitled to its costs of suit upon timely submission of its Memorandum of Costs, which will be added to the amount awarded in this Second Amended Judgment.” (2/19/26 Second Amended Judgment, p. 12, ¶ 5.) On February 20, 2026, Seller Parties filed a notice of appeal of the Second Amended Judgment. The parties do not dispute that the Second Amended Judgment is subject to section 917.1, subdivision (a)—i.e., no automatic stay pending the appeal without an undertaking. On February 27, 2026, M5 filed a Notice of Satisfaction of Judgment.

Post-judgment motion practice resulted in an award to M5 of costs in the amount of \$49,971.61 on April 9, 2026 and an award of attorneys’ fees in the amount of \$1,650,607.75 on May 12, 2026. On May 19, 2026, Seller Parties filed a notice of appeal of the Fee and Costs Award.

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

C. LEGAL STANDARDS

The default rule is that, “[u]nless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is ... [m]oney or the payment of money” (§ 917.1, subd. (a)(1).) To stay a money judgment, an appellant must post an undertaking one and one-half times the judgment, inclusive of awarded costs and fees. (§ 917.1, subd. (b).)

“However, no undertaking shall be required pursuant to this section solely for costs awarded under Chapter 6 (commencing with Section 1021) of Title 14.” (§ 917.1, subd. (d).) “[A] judgment consisting solely of costs is not a money judgment requiring an undertaking.” (*Quiles v. Parent* (2017) 10 Cal.App.5th 130, 137.) Thus, an appeal of a costs-only judgment is automatically stayed without an undertaking.

That said, under section 917.9, the court has discretion to condition the automatic costs-only stay on the posting of an undertaking. (§ 917.9, subd. (a)(3).) *Quiles* has suggested the following non-exclusive factors as appropriate for a trial court to consider when exercising its discretion under section 917.9, subdivision (a)(3): (1) whether “the costs judgment is large,” (2) whether “the danger of asset dissipation is acute,” or (3) whether the judgment debtor engaged in “bad faith in managing the underlying litigation.” (See *Quiles, supra*, 10 Cal.App.5th at 145.)

D. DISCUSSION

1. The Fee and Costs Appeal does not Automatically Stay Enforcement of the Award under the Final Provision of Section 917.1, Subdivision (d)

The issue raised by M5’s motion is whether the Fee and Costs Appeal automatically stays the Fee and Costs Award without an undertaking under the final provision of section 917.1, subdivision (d), or whether the enforcement of the Fee and Cost Award is not automatically stayed unless and until Seller Parties post an undertaking pursuant to section 917.1, subdivisions (a)(1), (b), and the first provision of subdivision (d).

M5 takes the latter position, arguing that (1) the Fee and Cost Award became integrated into the Second Amended Judgment, and (2) because Seller Parties’ appeal of the Merits Award does not automatically stay enforcement under section 917.1, subdivision (d), the appeal of the integrated Fee and Cost Award also does not automatically stay enforcement.

Seller Parties take the former position, arguing that the Fee and Cost Award is a costs-only judgment within the meaning of section 917.1, subdivision (d) because Seller Parties satisfied the Merits Award. Seller Parties acknowledge that they have appealed *both* the Merits Award and the Fee and Costs Award (distinguishable from any authority upon which they rely), but they contend that, because M5 only seeks to enforce the Fee and Costs Award, the Court should only consider the nature of the Fee and Costs Award and disregard the Merits Award in applying section 917.1. (Opp., 6:9-15, 7:5-10.) Seller Parties rely on *Nielsen v. Stumbos* (1990) 226 Cal.App.3d 301, *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, *Ziello v. Sup. Ct.* (1999) 75 Cal.App.4th 651, and *Quiles, supra*, 10 Cal.App.5th at 139 in support of their position.

Nielsen and *Dowling* involved judgments for costs only; no money damages were awarded. Thus, they are not on point. In *Quiles*, the court awarded \$208,500 in actual damages, \$50,591.69 in costs, and \$689,310.04 in attorneys' fees against Parent. (*Id.* at 138.) "Parent's solution to this predicament was to pay off the damages award (plus interest) and appeal only the award of attorney fees and costs. He claims that this maneuver converted what appeared to be a money judgment into a judgment solely for costs." (*Ibid.*) The court agreed with the analysis from *Ziello v. Sup. Ct.* (1999) 75 Cal.App.4th 651, 655-56, which reasoned that "[s]ince the appeal is limited to the order awarding costs, including attorney's fees, it is within the exclusion of the final provision of section 917.1, subdivision (d)." (*Quiles, supra*, 10 Cal.App.5th at 139 ["We therefore agree with the holding in *Ziello*. Applying *Ziello* to the facts here, it is clear that Parent is appealing only the awards of attorney fees and costs and not the underlying damage award. Parent has satisfied the underlying damage award. If the remaining attorney fees and costs are "costs" under section 917.1, subdivision (d), Parent is entitled to an automatic stay without posting an undertaking."].)

On the one hand, *Ziello* and *Quiles* are similar to the case at hand in that the appellants, there, satisfied the underlying money judgments and appealed the attorneys' fee and costs award. However, *Ziello* and *Quiles* are distinguishable in a critical way, as the appellants there did *not* appeal from the underlying money judgment; they *only* appealed the attorneys' fee and costs award. Thus, the holdings in *Ziello* and *Quiles* can only stand for the proposition that a judgment containing both money damages and attorney fees and costs is subject to the final provision of section 917.1, subdivision (d) where the money damages have been satisfied *and* the appeal is limited to costs. Here, on the other hand, Seller Parties' have appealed both the Merits Award and Fee and Costs Award. Seller Parties appear to recognize this distinction (see Opp., 1:25-2:1, 5:22-26) all while contending that *Ziello* and *Quiles* are controlling. Neither party cites to any authority in which these precise circumstances have been involved in a section 917.1, subdivision (d) analysis. The Court, in its independent research, has not located any case directly on point.

Despite the distinction between this case and *Ziello* and *Quiles*, *Ziello* and *Quiles* seem to suggest that the focus in determining whether or not the exception under section 917.1, subdivision (d) applies is less on whether the money judgment or fee and costs award has been *satisfied*, and more on *which order* is subject to appeal. Seller Parties recognize this. (See Opp., 6:3-4 ["The [*Ziello*] court reasoned that because the appeal was limited to the order awarding costs, including attorney fees, the appeal fell within the exclusion in section 917.1(d)."].)

The Court also finds that this interpretation is most consistent with a plain reading of section 917.1 in its entirety, which is that "the perfecting of an appeal" of a "judgment or order" for "money" does not stay enforcement of the "judgment or order," which includes an award of "costs" (see first provision of subd. (d)), unless an undertaking is posted. Here, Seller Parties perfected an appeal of the Merits Award (a judgment for money). By doing so, the enforcement of the Merits Award *and* Fee and Costs Award is not stayed without an undertaking. Although the Merits Award has been satisfied, that fact more appropriately concerns the ultimate calculation of the required undertaking (as further discussed in Section D.2. below) as opposed to triggering the final provision of section 917.1, subdivision (d).

Although the Court is not free from doubt, it finds M5's position most reasonable and its reasoning most compelling.

First, neither *Ziello* nor *Quiles* settled or involved the question of whether section 917.1, subdivision (d)'s automatic stay (no bond required) applies to a judgment of both money damages and fees and costs where the judgment debtor pays the money damages and appeals *both* the money damages and fees and costs award of a judgment.

Moreover, this precise fact pattern—of two judgments awarding money *and* costs—was not at issue in *Nielsen* or *Dowling*, the authority relied upon by Seller Parties. A stand-alone fee and cost award, at issue in those cases, is fundamentally different from a money judgment that expressly contemplates the inclusion of a fee and cost award.

Furthermore, the Court cannot reasonably construe Seller Parties' payment of the Merits Award as transforming their appeal of the Merits Award *and* Fee and Costs Award into only an appeal of the Fee and Costs Award, as Seller Parties' position would essentially have the Court do.

Finally, the Court does not find the concerns raised in *Vadas v. Sosnowski* (1989) 210 Cal.App.3d 471, 474 and *Nielsen, supra*, 226 Cal.App.3d at 304—that requiring a judgment for costs to be bonded would require bonding in virtually every case—at issue here. (See Opp., 7:28-8:10.) The Court's ruling here is limited to the unique circumstances where it is undisputed that both money damages and attorneys' fees and costs were awarded and appealed. As discussed, the Court believes these circumstances fall within the provisions of section 917.1, subdivision (a)(1).

Based on the foregoing, the Court concludes that the Fee and Cost Award is not subject to section 917.1, subdivision (d)'s automatic stay of enforcement. Thus, enforcement of the Fee and Costs Award is not stayed unless and until Seller Parties post an undertaking pursuant to section 917.1, subdivisions (a)(1) and (b), further discussed below.

This conclusion renders it unnecessary for the Court to consider the alternative request in M5's motion or Seller Parties' opposition thereto, regarding the Court's exercise of discretion to require Seller Parties to post an undertaking pursuant to section 917.9. (See Mem., 17:20-22:2; Opp., 9:17-15:16; Reply, 4:4-10:22.) That said, even assuming *arguendo* the enforcement of the Fee and Costs Award was subject to an automatic stay without an undertaking under 917.1, subdivision (d), the Court would be inclined to exercise its discretion to require a bond under 917.9 given *inter alia* the significant amount of Fee and Costs Award. (See *Quiles, supra*, 10 Cal.App.5th at 868-69 ["In a case where the costs judgment is large or the danger of asset dissipation is acute, a trial court can mitigate any injustices arising from the costs-only judgment rule."].) While the Court need not reach a determination thereon, M5 makes a strong showing in support of the Court's exercise of a discretionary bond based on the size of the Fee and Costs Award.

2. The Required Bond under Section 917.1 is Based on the Fee and Costs Award, as the Remaining Unpaid Portion of the Second Amended Judgment

M5 requests Seller Parties to post an undertaking in the amount of 1.5 times the Fee and Cost Award to obtain a stay of its enforcement pending appeal. (Notice of Motion, 3:10-11.)

The Court acknowledges Seller Parties' argument that requiring bond to be based solely on the Fee and Costs Award makes for an unusual application of the first provision of section 917.1, subdivision (d). (Opp., 7:11-8:10.) Section 917.1, subdivision (d) provides that fees and costs "shall be included" in the amount of the judgment for purposes of calculating bond under section 917.1, subdivision (a)(1) and (b). If the bond is based only on the Fee and Costs Award, there is no other "amount" or "judgment" with which the fees and costs "shall be included."

Seller Parties use this premise to argue that no bond should be required to stay enforcement of the Fee and Costs Award. However, Seller Parties' argument seems to conflate the requirement that a party post a bond under section 917.1, subdivision (a)(1), with the calculation of the bond under section 917.1, subdivision (d). In other words, the parties do not dispute that the appeal of the Merits Award requires a bond to stay enforcement. While no bond was posted because Seller Parties instead elected to satisfy the Merits Award, as discussed in detail above, the Court does not find that Seller Parties' election to satisfy the Merits Award transforms the pending appeals into a costs-only appeal.

That said, the fact that Seller Parties elected to satisfy the Merits Award seems relevant to calculating the bond that is required. In these circumstances, it seems reasonable to the Court to base the bond's calculation solely upon the unpaid portion on appeal, which is the Fee and Costs Award.

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Joel V. Benson v. Lisa Benson et al

25CV001556

MOTION OF PLAINTIFF JOEL V. BENSON FOR ORDER APPOINTING APPRAISER

TENTATIVE RULING: The motion is GRANTED IN PART and DENIED IN PART. The request for an order appointing a disinterested real estate appraiser to determine the fair market value of the Property is GRANTED as modified by the fourth and fifth points requested by Defendant further discussed below. Specifically, attendance by both parties' counsel at the inspection by the appraisal is required and the parties are ordered to meet and confer concerning a designated appraiser. The request for an order recognizing Plaintiff's reasonable attorneys' fees and costs incurred herein as "costs of partition" is GRANTED, with the determination of the reasonable fees and costs deferred as further described below.

Plaintiff shall provide an amended proposed order consistent with this ruling.

The matter is set for a Status Conference Re: Appraiser on September 11, 2026, at 8:30 a.m. in Dept. A. The parties are ordered to meet and confer on candidates in a good faith effort to agree on an appraiser. Upon any agreement, the parties may submit a stipulation and proposed

order, in which case the Status Conference will be vacated. Absent an agreement, the parties shall file, no later than September 2, 2026, a joint statement reporting their meet and confer efforts and nominations for an appraiser with sufficient details including estimated costs of appraisal.

The Case Management Conference is continued to October 21, 2026, 8:30 am in Department A.

A. PROCEDURAL MATTERS

Plaintiff Joel V. Benson (“Plaintiff”) moves, pursuant to Code of Civil Procedure section 874.316 subdivisions (a), (b), and (d),² for an order appointing a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the real property commonly known as 18 Horizon Court, American Canyon, California, 94503, APN 059-386-003-000 (“Property”). Plaintiff so moves on the grounds that this partition action is governed by the Partition of Real Property Act (Chapter 10 of Title 10.5, §§ 874.311 *et seq.*) (“Act”) and, because the cotenants have not agreed on the fair market value of the Property or on any method of valuation, the Court is required to appoint a disinterested California-licensed real estate appraiser to determine the Property’s fair market value. (Notice of Motion, 1:11-16.)

B. FACTUAL ALLEGATIONS

On July 29, 2025, Plaintiff filed his Complaint for Partition by Sale. (Compl., filed 7/29/25.) The Complaint alleges that Plaintiff and his mother, Defendant Lisa Benson (“Ms. Benson”) are cotenants of the Property, each holding a 50% undivided interest; that the Property is a single-family residence on less than a quarter-acre lot which is not conducive to division in kind; and that partition by sale is the more equitable remedy. (Compl., ¶¶ 1-24.) Ms. Benson answered the Complaint on or about November 7, 2025. (Answer, filed 11/7/25.)

On April 22, 2026, Plaintiff’s counsel emailed Ms. Benson’s counsel, seeking a stipulation to partition by appraisal under section 873.910-873.980.³ (Declaration of Anthony M. Bettencourt (“Bettencourt Decl.”), ¶ 8, Exh. A.) Ms. Benson did not agree to so stipulate, nor did Ms. Benson propose any other method. (*Id.*, ¶ 9.) The parties have reached no agreement on either the fair market value of the Property or on any method of valuation that would satisfy section 874.316, subdivision (b). (*Ibid.*)

Plaintiff’s counsel has since reconfirmed two disinterested, California-licensed real estate appraisers who remain willing and able to perform a full interior and exterior appraisal of the Property and to file a sworn or verified appraisal with the Court within 60 days of any order of appointment. (*Id.*, ¶ 10.)

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

³ Sections 873.910-873.980 (Chapter 7 of Title 10.5) allow for the parties to agree upon a partition by appraisal “[w]hen the interests of all parties are undisputed or have been adjudicated.” (§ 873.910.) While the Court understands why Plaintiff’s counsel solicited Ms. Benson’s stipulation pursuant to this Chapter, the Court notes that its provisions are different and separate from the Act, upon which the Motion is based.

C. LEGAL STANDARD

The Act “applies to actions for partition of real property filed on or after January 1, 2023” for “real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property.” (§ 874.311, subds. (b)-(c).) “In an action to partition real property, the property shall be partitioned under this chapter unless all of the cotenants otherwise agree in a record.” (§ 874.313, subd. (a).) “This chapter supplements the other provisions of this title [(§§ 872.010 *et seq.*)] and, if an action is governed by this chapter, this chapter shall control over any provisions of this title that are inconsistent with this chapter.” (*Id.*, subd. (b).)

“Except as otherwise provided in subdivisions (b) and (c), the court shall determine the fair market value of the property by ordering an appraisal pursuant to subdivision (d).” (§ 874.316, subd. (a).) “If the court orders an appraisal, the court shall appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value of the property assuming sole ownership of the fee simple estate. On completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court.” (*Id.*, subd. (d).)

There are two exceptions removing a partition action from section 874.316, subdivision (a)’s appraisal requirement: “If all cotenants have agreed to the value of the property or to another method of valuation, the court shall adopt that value or the value produced by the agreed method of valuation” and “If the court determines that the evidentiary value of an appraisal is outweighed by the cost of the appraisal, the court, after an evidentiary hearing, shall determine the fair market value of the property and send notice to the parties of the value.” (*Id.*, subds. (b)-(c).)

The Act was adopted in 2021 (then known as the “Uniform Partition of Heirs Property Act”) and was renamed and expanded in scope in 2022. (See Stats. 2021, c. 119 (A.B. 633) § 2, eff. Jan. 1, 2022, amended by Stats. 2022, c. 82 (A.B. 2245), § 7, eff. Jan. 1, 2023). In this context, the parties’ citations solely to cases predating the Act’s implementation is not particularly helpful to the analysis of the motion. That said, the Court, in its independent research, has located no cases which cite to section 874.316—the basis for Plaintiff’s Motion. Moreover, the Court has located no published case which cites to the Act at all (§§ 874.311-874.323), and the few unpublished cases the Court located all found, with minimal discussion, that the Act is inapplicable because the action was filed prior to 2023.

D. DISCUSSION

1. Plaintiff’s Request for an Appraisal Order

Plaintiff argues that the Act applies because, under section 874.311, subdivisions (b)-(c), this action is one for the partition of real property filed after January 1, 2023, and the real property is held in tenancy in common without an agreement governing the partition of the property. Plaintiff further shows that the two statutory exceptions to the appraisal requirement under section 874.316, subdivision (a) are not satisfied here. Thus, Plaintiff argues that the

mandatory directive of section 874.316, subdivision (a) controls and the Court must order an appraisal in the manner provided under subdivision (d).

Ms. Benson disputes the Motion on the ground that it is premature based on a muddled sequence which the Court has attempted to untangle and articulate as follows: (1) The Court must first determine whether the Property is subject to the Act (see Opp., 1:23-25, 2:13-18), (2) which determination depends upon a determination as to the “actual beneficial interests” the parties hold (see *id.*, 1:25-28, 2:19-3:1), and (3) the determination of the “actual beneficial interests” requires the defenses asserted in Ms. Benson’s Answer—specifically, Ms. Benson’s allegation that Plaintiff committed waste by failing to maintain the Property—to be tried (see *id.*, 1:26-27, 2:1-4, 3:2-6). In essence, Ms. Benson’s argument is that the Property cannot be appraised until the merits of the partition action are tried.

Ms. Benson’s arguments in opposition fail for the following reasons.

As a starting point, Ms. Benson relies upon and, in fact, quotes language purportedly from section 874.316, subdivision (a) which does not appear in that statute. (See Opp., 1:23-25, 2:13-16.) This is not well taken.

Nevertheless, in turning to the Act’s applicability to the present action, Ms. Benson does not address, and therefore does not dispute, Plaintiff’s showing under the *express* provisions in sections 874.311, subdivisions (b)-(c) or 874.313. Furthermore, Ms. Benson does not dispute Plaintiff’s contention that neither statutory exception under section 874.316, subdivisions (b) and (c) applies here, and that, therefore, section 874.316, subdivision (a) mandates the Court to order an appraisal.

Moreover, Ms. Benson provides no authority supporting her second contention that the Act’s *applicability* depends upon any determination as to the “actual beneficial interests” between the parties. Ms. Benson relies upon section 872.610 which merely provides that “[t]he interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.” (§ 872.610.) However, that section does not support that the Act somehow becomes inapplicable based on the determination of interests. Nor does that section provide that the trial and determination of the parties’ interests *must* occur prior to the appraisal required under section 874.316.

Furthermore, as Plaintiff provides in Reply, section 874.316, subdivision (g) undermines Ms. Benson’s proffered sequence by expressly stating that “before considering the merits of the partition action, the court shall determine the fair market value of the property and send notice to the parties of the value.” Additionally, the provisions of the Act (*i.e.*, section 874.316) expressly “control over any provisions of this title [(*i.e.*, section 872.610)] that are inconsistent with this chapter.” (*Id.*, subd. (b).) Thus, even assuming *arguendo* section 872.610’s allowance for a trial and determination of the parties’ interests can be interpreted in such a way to prevent or hinder the appraisal mandate under section 874.316, section 874.316 controls.

Even further, as Plaintiff notes in Reply, Ms. Benson’s contention that there is a dispute as to the “actual beneficial interests” appears more relevant to the question of apportionment

under section 872.140, which is not affected by, or at issue under, the appraisal under the Act. (See Reply, 1:23-2:2.) The Court has a difficult time understanding Ms. Benson’s apparent argument that an appraisal under “as-is” conditions and under an assumption of “sole ownership of the fee simple estate,” as Plaintiff proposes, would be improperly “scoped” because it would fail to “develop a record on the pleaded waste and condition issues.” (Opp., 3:7-21.) Rather, section 874.316, subdivision (d) expressly directs the appraiser to determine the fair market value of the Property “assuming sole ownership of the fee simple estate.” A failure to develop a record on Ms. Benson’s defenses does not strike the Court as a duty of an appraiser. An appraisal determines the fair market value of the property, which value is the same whether Plaintiff’s interest is ultimately fixed at 50%, more, or less.

Finally, as Plaintiff raises in Reply, Ms. Benson’s position that the appraisal should be delayed is contrary to the apparent purpose of the Act to move co-ownership disputes efficiently toward resolution. (See, e.g., §§ 874.316-874.319 [providing process for party-led partition and sale]; see also Miller and Starr, 4 Cal. Real Estate, § 11:21 (4th ed. June 2026) [“[T]he primary effect of the Act is to provide a detailed mechanism for partition in kind by sale of interests in the property, with specific sale procedures, appraisal requirements, opportunities for parties to buy out the interest of those cotenants who wish to sell rather than be forced into a sale of the property, and, where it is determined that a sale of the property should occur, to allow an open market sale of the property through a real estate broker rather than a forced judicial sale or auction with sealed bids.”].)

Thus, the Court rejects Ms. Benson’s request to deny the motion as premature.

In the alternative, Ms. Benson requests that the proposed order be modified to require: (1) a full interior and exterior inspection; (2) identification and quantification of any deferred maintenance or condition impairment, with photographic documentation; (3) both “as-is” and “as-repaired” fair market-value opinions; (4) attendance by both parties’ counsel at the inspection; and (5) a meet-and-confer process on appraiser selection whereby the parties are directed to confer on at least three candidates within 30 days. (Opp., 3:16-21; 5:9-12.)

Plaintiff objects only to the second and third modifications proposed by Ms. Benson. In fact, Plaintiff’s proposed order already includes the first proposal by Ms. Benson that the appraisal require a full interior and exterior inspection. (See 6/2/26 Proposed Order, p. 3, ¶ 4.)

Plaintiff objects to an order compelling an “as-repaired” value, which he contends is exactly what a waste inventory/accounting would require. (Reply, 6:10-12.) In light of the above analysis regarding Ms. Benson’s apparent conflation of the appraisal procedure with the apportionment/accounting procedure, the Court agrees with Plaintiff. The mandate under section 874.316 is for an appraisal to be performed “assuming full ownership of a fee simple interest (i.e., without taking into account fractional interest discounts).” (Ross, *et al.*, Cal. Prac. Guide: Probate (The Rutter Group July 2026), Ch. 14-D, § 14:250.4.) Ms. Benson is free to develop her waste claim through discovery and to present it when appropriate (i.e., when apportionment is at issue).

As to Ms. Benson's second modification, Plaintiff states he "does not object to the appraiser's noting the property's condition as observed at that inspection in the ordinary course of preparing the appraisal." (Reply, 6:8-9.) While phrased as a non-objection, the terms to which Plaintiff agrees are slightly different than the modification requested by Ms. Benson, in that Plaintiff does not appear to agree to a requirement that the appraiser do anything outside the ordinary course and scope of preparing an appraisal. The Court agrees with Plaintiff, as the modification proposed by Ms. Benson appears more relevant to the parties' discovery efforts, than a duty of an appraiser.

With respect to the fifth modification proposed by Ms. Benson, the Court acknowledges that Plaintiff's former efforts to meet and confer with Ms. Benson's counsel on an appraiser prior to filing the motion were met with silence. (Bettencourt Decl., ¶¶ 8-9.) However, the Court finds Ms. Benson's present request to meet and confer on an appraiser reasonable. Moreover, the Court notes that Plaintiff does not object to it. (See Reply, 6:23-25.)

Based on the foregoing, the Motion is GRANTED as modified by the above-identified fourth and fifth points requested by Ms. Benson. Specifically, attendance by both parties' counsel at the inspection by the appraisal is required. Additionally, the parties are ordered to meet and confer on candidates in a good faith effort to agree on an appraiser. The matter is set for a Status Conference Re: Appraiser on September 11, 2026, at 8:30 a.m. in Dept. A. Upon any agreement, the parties may submit a stipulation and proposed order, in which case the Status Conference will be vacated. Absent an agreement, the parties shall file, no later than September 2, 2026, a joint statement reporting their meet and confer efforts and nominations for an appraiser with sufficient details including estimated cost of appraisal.

2. Plaintiff's Request to Recognize Attorneys' Fees Incurred Herein as Costs of Partition

Plaintiff requests that "the Court (1) recognize the reasonable attorney's fees and costs Plaintiff has incurred in bringing this Motion as costs of partition under section 874.010, subdivision (a); (2) defer final apportionment until judgment when the record will reflect the cotenants' respective conduct throughout the action; and (3) preserve Plaintiff's right to seek an equitable apportionment different from the default pro rata allocation under section 874.040 if Ms. Benson's refusal to participate in the statutory appraisal process continues." (Mem., 8:10-16.)

Ms. Benson opposes this request, arguing that, where, as here, one cotenant's litigation expenses are incurred in pressing a position that the other cotenant disputes, those expenses are individual litigation costs, not common-benefit costs, and they are properly borne by the cotenant who chose to litigate. (Opp., 2:5-9, 4:5-8.)

Section 874.010 lists categories included within the "costs of partition," and includes "[r]easonable attorney's fees incurred or paid by a party for the common benefit." (§ 874.010, subd. (a).)

Given the mandatory nature of the appraisal set forth in section 874.316, subd. (a), the Court finds Plaintiff's reasonable costs and fees incurred in bringing this Motion are costs of partition under section 874.010, subdivision (a). The Court defers final determination of said fees and costs until the apportionment phase. For this reason, Plaintiff's request regarding costs of partition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Charleen Wignall – Ewing v. Uegene Armstead et al

23CV000124

[1] OSC re: COURT'S MOTION TO DISMISS

TENTATIVE RULING: The Court orders the action against Gene Armstead DISMISSED WITHOUT PREJUDICE for lack of prosecution. Respondent Gene Armstead is directed to lodge, with the Court, a [Proposed] Order After Hearing consistent with the instant ruling. The Court sets the matter for a Status of Dismissal hearing on September 4, 2026, at 8:30 a.m. in Dept. B.

“The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion . . . if to do so appears to the court appropriate under the circumstances of the case.” (Code Civ. Proc., § 583.410, subd. (a).) The Court may dismiss an action where “[s]ervice is not made within two years after the action is commenced against the defendant” and/or [t]he action is not brought to trial within . . . [t]hree years after the action is commenced against the defendant . . .” (Code Civ. Proc., § 583.420, subs. (a)(1) and (2)(A).)

“In ruling on [a motion to dismiss] the court must consider all matters relevant to a proper determination of the motion, including: (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process; (2) The diligence in seeking to effect service of process; (3) The extent to which the parties engaged in any settlement negotiations or discussions; (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party; (5) The nature and complexity of the case; (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case; (7) The nature of any extensions of time or other delay attributable to either party; (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial; (9) Whether the interests of justice are best served by dismissal or trial of the case; and (10) Any other fact or circumstance relevant to a fair determination of the issue.” (Cal. Rules of Court, rule 3.1342(e).)

Petitioner and Plaintiff Charleen Wignall-Ewing commenced this action on January 30, 2023, by filing a Civil Complaint against Bruce Miroglio, and Gene Armstead both in his individual capacity and in his capacity as Trustee of the John Scruggs 2014 trusts. Ms. Wignall-Ewing filed a First Amended Complaint (FAC) on April 3, 2023. On August 9, 2023, Mr. Armstead demurred to the FAC. The Court sustained the demurrer by Minute Order of

September 6, 2023. Therein, the Court found that “each of Plaintiff’s claims against Armstead arise out of alleged injuries she suffered in her capacity as beneficiary of the Subject Trusts. The Court further finds that Armstead’s alleged liability for those injuries arise exclusively from his role as Trustee of those trusts.” (See *id.* at p. 6.) Based on these findings and a review of the law, the Court ruled that “the provisions of the Probate Code control the parties and the subject matter of the claims asserted through the FAC by setting forth the applicable remedies and the proceedings to be followed. Under these provisions, the Court sitting in Probate has exclusive jurisdiction over proceedings involving the internal affairs of the Subject Trusts. [Citations.]” (*Ibid.*)

On September 20, 2023, Ms. Wignall-Ewing filed a Second Amended Complaint (SAC). Through the SAC, Ms. Wignall-Ewing asserted, for the first time, a claim for breach of trust, arising under the Probate Code, against Mr. Armstead. On January 22, 2024, Ms. Wignall-Ewing filed the operative Third Amended Complaint (TAC). The TAC asserted only the single cause of action for Breach of Trust, arising under the Probate Code, against Mr. Armstead in his capacity as Trustee, and a single cause of action for negligence against Mr. Miroglio.⁴

On November 1, 2024, Mr. Armstead filed his first Motion for Summary Judgment on the TAC (MSJ 1). Following hearing on March 14, 2025, the Court took MSJ 1 under submission. By Order After Hearing filed on March 21, 2025, the Court stated that “[d]uring oral argument, [counsel for Mr. Armstead] Mr. Queally argued, for the first time, that the Court lacked jurisdiction due to a failure, by Plaintiff, to comply with the Probate Code’s notice requirements. [¶] Ordinarily, the Court would not entertain arguments raised for the first time at hearing. However, because the argument implicates the Court’s jurisdiction to rule on the motion, the Court finds it appropriate to consider it, after affording the parties the opportunity to address the issue fully.” The Court then set a schedule for further briefing on the jurisdictional issue.

On April 3, 2025, Mr. Armstead timely filed a Supplemental Brief. Therein, Mr. Armstead noted that there was no proof in the Court’s files that any of the other beneficiaries to the Trust had been served with Summons and a copy of any of the Complaints in the action. Mr. Armstead argued that this failure constituted a denial of these beneficiaries’ due process rights, and deprived the Court of its jurisdiction to make any rulings in the matter. Ms. Wignall-Ewing did not file a Supplemental Brief.

On May 21, 2025, the Court issued an Order After Hearing on Mr. Armstead’s MSJ 1. The Court, again, found that “[t]he Probate Code governs Petitioner’s current claims against Respondent Eugene Armstead” and that “[t]he Court will treat the Complaint against Eugene Armstead as a Probate Petition subject to the rules of the Probate Code *which include notice requirements particular to Probate matters.*” (*Id.* at p. 1. Italics added.) The Court concluded that it “has jurisdiction over the claims against Respondent Eugene Armstead only after the notice requirements are met.” (*Id.* at p. 2.)

⁴ By Order of March 21, 2025, the Court granted Mr. Miroglio’s motion for summary judgment. Thus, Mr. Miroglio is no longer a party to the action.

On April 22, 2026, Mr. Armstead filed a second Motion for Summary Judgment on the TAC. Through her Opposition to that motion, Ms. Wignall-Ewing refers to the May 21, 2025, Order After Hearing. She then states, “Probate notice requirements are found in Probate Code sections 17201 and 17203. They require Wignall to state the names and addresses of each beneficiary entitled to notice in her Petition in order to commence the proceeding. Even though the court ruled that Probate notice requirements had not been met, Wignall did not amend her pleading to state the names of the interested parties. To this day, there is no pleading that identifies who the interested parties are in compliance with section 17201. According to the plain meaning of section 17201, this proceeding has not commenced.” (Opposition at 5:11-18.)

More than 42 months after the filing of the original Complaint, and more than 30 months after the filing of the operative TAC, there remains no proof of adequate service on the beneficiaries of the subject Trust.⁵ Ms. Wignall-Ewing was put on notice of her failure to properly serve the beneficiaries no later than 18 months ago, at the March 21, 2025, hearing on Mr. Armstead’s MSJ 1. Rather than correct the defect, she affirmatively raised the lack of proper service (and her related failure to identify all beneficiaries in the Petition) as a defense to Mr. Armstead’s second Motion for Summary Judgment, as described in the Court’s July 16, 2026, Minute Order.

Ms. Wignall-Ewing presents no valid explanation or justification, through her Memorandum of Points and Authorities re OSC Dismissal, for her continuing failure and refusal to put the action at issue by properly identifying and serving the beneficiaries. Her failure and refusal have left the Court without jurisdiction over the matter for far too long. (See *Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question”].)

Based on the foregoing, the Court orders the action against Gene Armstead DISMISSED WITHOUT PREJUDICE based on Ms. Wignall-Ewing’s failure to prosecute it. (See Code Civ. Proc., § 583.410, subd. (a).)

[2] DEFENDANT GENE ARMSTEAD’S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING: Based on the concurrent ruling dismissing the action, Gene Armstead’s Motion for Summary Judgment is MOOT.

⁵ Through her Memorandum of Points and Authorities re OSC Dismissal, Ms. Wignall-Ewing cites to a Proof of Service she filed in the action on April 17, 2025. (See *id.* at 3:3-7.) That filing only evidences service of the *original* Complaint. At the time of said service, however, the *third amendment* thereto was the operative pleading. There remains no proof that any of the beneficiaries have ever been served with any operative pleading or with any notice of hearing thereon. (See Prob. Code § 17203, subd. (a)(2).)

[3] MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO REQUESTS FOR PRODUCTION, SET ONE AND SET TWO, AND FOR MONETARY SANCTIONS OF \$10,000.00

TENTATIVE RULING: Based on the concurrent ruling dismissing the action, Charleen Wignall-Ewing's Motion to Compel is MOOT.

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Global AG Properties USA LLC et al v. Fairwinds Estate

24CV001745

MOTION FOR TERMINATING SANCTIONS AGAINST FAIRWINDS ESTATE WINERY, LLC

TENTATIVE RULING: The motion is GRANTED. The Court orders the Clerk to STRIKE the Answer filed by Defendant Fairwinds Estate on November 18, 2024.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs Global AG Properties USA, LLC, Global AG Properties, II USA, LLC, and SPP Napa Vineyards, LLC move, pursuant to Code of Civil Procedures sections 2023.010, 2023.030, subdivision (d), 2031.320, subdivision (c), and 2030.300, subdivision (d), for the imposition of terminating sanctions against Defendant Fairwinds Estate Winery, LLC (erroneously sued as Fairwinds Estate) (Fairwinds) based on Fairwind's willful violation of the Court's order compelling Defendant to provide discovery responses.

Plaintiffs commenced the action against Fairwinds by filing the operative Complaint on October 4, 2024. On November 18, 2024, Fairwinds filed an Answer by which it generally denied the allegations of the Complaint and asserted a series of affirmative defenses. On July 1, 2025, Plaintiffs filed four motions seeking to compel Fairwinds to honor its obligations under the Civil Discovery Act: (1) a motion to deem admitted the genuineness of documents and matters specified in requests for admissions; (2) a motion to compel Fairwinds to provide responses to form interrogatories; and (3) a motion to compel Fairwinds to provide responses to special interrogatories; and (4) a motion to compel Fairwinds to provide responses to requests for production of documents. Fairwinds did not file anything by way of opposition to any of the motions.

By Minute Order of August 5, 2025, the Court granted the four discovery motions.

Plaintiff filed the present motion on July 21, 2026. The Court finds from the evidence presented as follows:

1. Plaintiff adequately served Notice of the hearing on the present motion and moving papers on Fairwinds;
2. Fairwinds has not complied with any of the Court's August 5, 2025, Minute Order, and have produced no responses to the subject discovery.

Defendants appear to concede the foregoing by failing to file anything by way of opposition to the present motion.

In addition, on February 11, 2026, the Court granted Fairwind's former attorneys' Motion to be Relieved as Counsel. From and after that hearing Fairwinds has not appeared in the action, and has not substituted new counsel in.

Disobeying a court order to provide discovery is a clear misuse of the discovery process. (Code Civ. Proc. § 2023.010.) To the extent authorized by the statute or statutes governing the particular form of discovery, the court may impose sanctions upon any party misusing the discovery process, including terminating sanctions consisting of an order striking the party's pleading. (Code Civ. Proc. § 2023.030, subd. (d).) If a party fails to obey an order compelling responses to discovery, "the court may impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process...[and/or]...[a]n order rendering a judgment by default against that party." (Code Civ. Proc. § 2023.030, subd. (d).)

It is undisputed that Fairwinds failed to obey the Court's August 5, 2025, Minute Order. The Court further notes that Fairwinds, by all appearances, is no longer actively defending itself against the allegations in the operative Complaint. As noted above, Fairwinds failed to oppose any of the four original discovery motions and has filed no opposition to the present motion.

The sanctions imposed must be tailored to "fit the crime." (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) "The penalty should be appropriate to the dereliction and, should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

The Court finds, based on all of the foregoing, but in particular Fairwinds failure to oppose the present motion, that terminating sanctions are appropriate to Fairwinds' failure to participate in the litigation and defend itself. Thus, Plaintiffs' request to strike Fairwind's Answer to the Complaint, filed November 18, 2024, is GRANTED. (See Support Memorandum at 6:13-14; see also Code Civ. Proc., § 2023.030, subd. (d)(1) ["The court may impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process"].)

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PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.